

Shri Suneel Kumar vs Smt. Sarita Yadav & Anr on 12 November, 2020

Author: Hima Kohli

Bench: Hima Kohli, Subramonium Prasad

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IN THE HIGH COURT OF DELHI AT NEW DELHI

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MAT.APP.(F.C.) 137/2020

SHRI SUNEEL KUMAR

..... Appellant

Through

Mr. R.R. Kumar, Advocate.

versus

SMT. SARITA YADAV & ANR.

..... Respondents

Through None.

CORAM:

HON'BLE MS. JUSTICE HIMA KOHLI

HON'BLE MR. JUSTICE SUBRAMONIUM PRASAD

ORDER

% 12.11.2020 HEARD THROUGH VIDEO CONFERENCING CM APPL. 29060/2020 (exemption)
Allowed, subject to all just exceptions.

MAT.APP.(F.C.) 137/2020

1. The appellant/husband is aggrieved by the judgement dated 12.06.2020, passed by the learned Family Court, Dwarka dismissing a petition for divorce filed by him against the respondent/wife, on the grounds of adultery and cruelty under Section 13(1) (i) & (ia) of Hindu Marriage Act, 1955.

2. Mr. R.R. Kumar, learned counsel for the appellant/husband states that marriage of the parties was solemnised on 13.12.1999. There are three children from out of the wedlock; two sons and a daughter. By now, the two sons are 18 and 16 years old respectively and the daughter is 14 years old.

The sons have all along remained in the care and custody of the appellant and the daughter has been in the care and custody of the respondent.

3. Learned counsel states that HMA No.522/2017 (Old No.718/2014) is the third divorce petition filed by the appellant. The first petition was filed by the appellant in the year 2004 (HMA No.471/2004). In those proceedings, the matter was resolved as the parties had agreed to reconcile their disputes. However, the disputes between the parties continued and as a result, the appellant filed a second petition for divorce in the year 2005 (HMA No.182/2005). It is stated by Mr. Kumar that the disputes between the parties were again settled due to which the appellant withdrew the

said petition as well.

4. Learned counsel states that even during the pendency of the third petition wherein the impugned judgment has been passed, the parties were able to successfully negotiate a settlement before the Counsellor attached to the Family Court but due to differences with regard to the mode and manner of releasing the one time settlement amount to the respondent, the settlement had broken down.

5. A perusal of the record reveals that the appellant/husband has served an advance copy of the paper book electronically on the respondents No.1 and 2. However, none is present on their behalf. Learned counsel for the appellant is directed to take fresh steps to serve the respondents No.1 and 2 directly as also through the Advocate, if any, appearing for them before the learned Family Court, electronically as also through speed post. The next date of hearing shall be duly intimated to the respondents. The appellant and the respondent No.1 shall remain virtually present on the next date of hearing.

6. List on 14.01.2021.

HIMA KOHLI, J SUBRAMONIUM PRASAD, J NOVEMBER 12, 2020 nn/rkb